

of such person or after an employee has voluntarily left such service, by any misrepresentation prevents or attempts to prevent the former employee from obtaining employment, is guilty of a misdemeanor.

Lab. Code § 1050.

Any person who knowingly causes, suffers, or permits an agent, superintendent, manager, or employee in his employ to commit a violation of sections 1050 and 1051, or who fails to take all reasonable steps within his power to prevent such violation is guilty of a misdemeanor.

Lab. Code § 1052

The Court notes that the First and Second Causes of Action already allege violations of Labor Code §§ 1050 and 1052, respectively, against both Jessica Larmour and Shascom. Defendant argues the Fifth Cause of Action is not pled as relying on either Labor Code § 1050 or § 1052. This is correct. While paragraph 106 of the complaint realleges and incorporates preceding allegations, the allegations of the Fifth Cause of Action do not reference or in any way make it apparent that Labor Code §§ 1050 and 1052 form the statutory basis for the Fifth Cause of Action. The Court finds that, as currently pled, Plaintiff has failed to state a claim for negligent supervision as alleged in the Fifth Cause of Action. Therefore, the Court will sustain the demurrer. Plaintiff has requested leave to amend. While Defendant has requested that leave to amend be denied, the Court is inclined to allow Plaintiff the opportunity to correct the deficiency, if he can.

The Demurrer to the Fifth Cause of Action is **SUSTAINED** with leave to amend. Plaintiff is given 15 days from the date of the notice of entry of order to file a first amended complaint. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: GEBRESILASSIE

CASE NUMBER: 26CV-0210823

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change her name from Leila Belay Gebresilassie to Leila Yasmin Yohannes and to also change the name of her minor daughter. The Certificate of Publication was filed on July 24, 2026. The Court is able to **GRANT** the Petition on behalf of the mother. However, when a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). A proof of service has not been filed indicating that the non-petitioning parent was personally served. As to the minor, the Court intends to **DENY** the Petition. Should Petitioner wish to have time to serve the non-petitioning parent, Petitioner request a future hearing date. Petitioner will be required to obtain an Amended Order to Show Cause with the new hearing date and serve that on the non-petitioning parent at least thirty days prior to the new hearing date. **An appearance by Petitioner is necessary on today's calendar to confirm whether Petitioner would like her Petition granted at this time and whether Petitioner seeks a continuance of the hearing to serve the non-petitioning parent.**

HOWLAND, ET AL. VS. SABET, ET AL.

CASE NUMBER: 25CV-0207803

Tentative Ruling on Motion to Strike: Plaintiffs David Howland and Lori Howland move to strike the Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet on May 22, 2026. The Sabet Defendants oppose the motion.

As a preliminary matter, when reviewing this motion, the Court noticed that the clerk set aside the default at issue on February 23, 2026. This was a clerical error. While the parties discussed setting aside the default at the Mandatory Settlement Conference on February 23, 2026, no such order was made. The Court orders that the default was set aside effective April 6, 2026, which is the date the Court executed the Order to Set Aside Default. The clerk is directed to correct the date on the default set aside.

Meet and Confer. Plaintiffs have provided sufficient evidence of their attempt to meet and confer prior to filing the motion. Even if efforts were insufficient, that is not grounds to deny the motion. CCP § 435.5(a)(4).

Merits. A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. Pursuant to CCP § 436(b), a Court may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court.

In this matter, Default was entered on July 14, 2025. On March 25, 2026 the parties submitted a Stipulation and Order. The Order was executed on April 6, 2026 and reads, in relevant part “Defendants FARZAD SABET and MARIKIT SABET shall file and serve their answer, and will file no other responsive pleadings to the complaint, such as demurrer or motion for judgment on the pleadings, within twenty (20) days of the date of this Order.” The Order does include any wording about a Cross-Complaint. Defendants filed an Answer and Cross-Complaint on May 22, 2026. This is long past the 20 days permitted by the Order. However, Plaintiffs only seek to strike the Cross-Complaint, not the Answer.

The Cross-Complaint was not filed in conformity with the Court’s Order dated April 6, 2026. The plain language of the Order permitted that only an Answer be filed. The Court notes that Defendants used the Opposition to this motion to seek leave to file a Cross-Complaint. That is improper. Defendants will need to bring their own noticed motion seeking leave to file a Cross-Complaint.

The Motion to Strike is **GRANTED**. The Cross-Complaint filed by Defendants Farzad Sabet and Marikit Sabet is ordered **STRICKEN**. The clerk is directed to strike the Cross-Complaint filed May 22, 2026. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor did not respond to the motion. Plaintiffs filed two proofs of service. In the Proof of Service by First-Class Mail, the address used for service is not listed on pleadings in this matter, is not counsel’s address of record in this matter, and is not the address listed for counsel on the State Bar’s website. Additionally, the service by mail was untimely. CCP § 1005(b). However, the Proof of Electronic Service is in proper form and reflects timely service using the email address listed for Defendant’s counsel on the pleadings in this matter. Based on the Proof of Electronic Service, the Court finds that this motion was properly noticed.

The Order from which Plaintiffs seek relief is dated May 11, 2026. The Order granted Defendant’s Motion to Terminate Case which was heard on that same date. The motion was properly noticed. However, Plaintiffs did not file an Opposition. Counsel for Plaintiffs, Daniel Henderson, appeared at the hearing and argued the merits of the motion. The Court adopted the tentative ruling, which was to grant the motion. Granting of the motion resulted in a dismissal of Plaintiffs’ Complaint. A Motion for Reconsideration was filed on May 19, 2026. This motion was denied on June 1, 2026 for being untimely filed and there being insufficient proof that Defendant received notice of the Motion for Reconsideration. On August 3, 2026 the Court entered judgment in favor of Defendant.

In support of the motion at issue today, Eric Alan Berg provided a declaration stating that he is the principal of the Law Office of Berg & Associates and as the principal, he is responsible for supervision of this matter. Mr. Berg failed to ensure that the Motion for Reconsideration was timely filed and properly noticed. Mr. Berg also